IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF TEXAS

ALEK SCHOTT,

Plaintiff,

v.

FEDERAL EXPRESS CORPORATION, successor by merger to FEDEX GROUND PACKAGE SYSTEM, INC.,

Defendant.

C.A. No. 4:26-cv-08325

JURY DEMANDED

COMPLAINT

Plaintiff Alek Schott brings this action against Defendant Federal Express Corporation, successor by merger to FedEx Ground Package System, Inc. (collectively, "FedEx") for violations of the Fair Labor Standards Act ("FLSA"), 29 U.S.C. § 201 *et seq*..

PROCEDURAL BACKGROUND

1. Plaintiff hereby re-files his claims against FedEx. Plaintiff previously opted in to the conditionally certified collective action of *Claiborne v. FedEx Ground Package Sys., Inc.*, No. 2:18-cv-01698 (W.D. Pa.), and after that case was voluntarily decertified filed claims against FedEx in the mass action case of *Abner v. Federal Express Corp., s/b/m to FedEx Ground Package Sys., Inc.*, No. 2:24-cv-01129 (W.D. Pa.). Plaintiff is listed in the caption and in paragraph 1046 of the Complaint. See Abner, Dk. No. 17. Pursuant to the Court's order in that case dated May 18, 2026, Plaintiff's claims were severed, and Plaintiff was directed to file this District within sixty (60) days so that his claims would not be time-barred (see Exhibit A to the Complaint).

JURISDICTION AND VENUE

2. Jurisdiction is proper under 29 U.S.C. § 216(b) and 28 U.S.C. § 1331.

re-file in this District within sixty (60) days so that his claims would not be time-barred (see Exhibit A to the Complaint).[1]

JURISDICTION AND VENUE

2. Jurisdiction is proper under 29 U.S.C. § 216(b) and 28 U.S.C. § 1331.

3. Venue is proper under 28 U.S.C. § 1391(b)(2), as this is the district where Plaintiff worked for FedEx.

PARTIES

4. Plaintiff is an individual who worked as a delivery driver for FedEx in this District but was paid by intermediary entities that FedEx calls "independent service providers." Plaintiff has been eligible to receive overtime pay under the FLSA because Plaintiff has driven a vehicle weighing less than 10,001 pounds but has not received overtime pay for hours worked beyond 40 per week.

5. Federal Express Corporation is a Delaware corporation with its principal place of business in Memphis, Tennessee.

6. FedEx Ground Package System, Inc. is a Delaware corporation with its principal place of business in Pittsburgh, Pennsylvania.

7. Federal Express Corporation is the successor, by merger, to FedEx Ground Package System, Inc.

8. Federal Express Corporation and FedEx Ground Package System, Inc. are referred to herein collectively as "FedEx."

FACTS

I. FEDEX CONTRACTS WITH INTERMEDIARY BUSINESSES ACROSS THE COUNTRY TO PROVIDE PACKAGE PICKUP AND DELIVERY SERVICES

9. FedEx operates a package pickup and delivery business servicing customers throughout the United States.

10. FedEx operates a nationwide network of package handling terminals to serve its customers' package pickup and delivery needs around the country. FedEx advertises its

[1] The parties agreed to toll the 60-day deadline while pursuing mediation. Mediation was unsuccessful, and Plaintiff has timely filed this Complaint.

9. At all relevant times, FedEx has engaged in the business of the delivery of packages nationwide and within this District.

10. FedEx employs thousands of individuals across the country, including Plaintiff, who have engaged in interstate commerce.

11. FedEx is an employer under the FLSA.

FACTS

12. FedEx operates a package pickup and delivery business servicing customers throughout the United States.

13. FedEx operates a nationwide network of package handling terminals to serve its customers' package pickup and delivery needs around the country. FedEx advertises its delivery service and negotiates with its customers to provide the package pickups and deliveries that are performed by Plaintiff and other delivery drivers.

14. FedEx has employed thousands of package delivery drivers within the United States, who: (a) have worked for FedEx through intermediary employers called "independent service providers" ("ISPs"), who pay the drivers; (b) have been classified as "employees" of the FedEx ISPs; (c) have worked more than forty hours per week delivering packages for FedEx but have not been paid time-and-a-half compensation for all hours worked beyond forty each week; and (d) have driven, in whole or in part, vehicles with a gross vehicle weight rating of 10,001 pounds or less. These individuals are referred to herein as "delivery drivers."

12. Plaintiff worked for FedEx as a delivery driver in this District.

13. Before instituting the ISP model of employing its delivery drivers through intermediary entities, FedEx relied on delivery drivers that it hired directly and purported to classify as "independent contractors," pursuant to standard operating agreements that FedEx required its drivers to sign. After years of defending litigation challenging the employment status of these drivers around the country, during which time multiple courts around the country held that FedEx misclassified its delivery drivers as independent contractors when they were actually FedEx's employees under various state wage laws, FedEx shifted its method of hiring drivers in many states by contracting with ISPs in an effort to continue to avoid liability under the wage laws for its drivers.

14. FedEx ISPs are typically responsible for three or more FedEx delivery routes. FedEx requires its ISPs to hire FedEx's workforce of delivery drivers, and FedEx further requires the ISPs to classify these delivery drivers as the ISPs' employees.

I. FEDEX CONTRACTS WITH INTERMEDIARY BUSINESSES ACROSS THE COUNTRY TO PROVIDE PACKAGE PICKUP AND DELIVERY SERVICES

15. FedEx negotiates with the ISPs the price it pays for each delivery route.

16. Before instituting the ISP model of employing its delivery drivers through FedEx is aware of the labor costs required for pricing the routes, and the labor costs are taken intermediary entities, FedEx relied on delivery drivers that it hired directly and purported to

into account when FedEx sets the route prices. FedEx does not account for overtime pay for

20. Delivery drivers working under ISPs, including Plaintiff, have typically worked

delivery drivers in setting the amounts it pays the ISPs.

full time and exclusively as FedEx drivers, delivering FedEx's packages to FedEx customers

16. Based on the economic realities of the relationship between FedEx and the

while wearing FedEx uniforms and driving vehicles bearing FedEx's logos and color scheme.

delivery drivers, it is clear that the delivery drivers working under the intermediary ISPs are also

21. Plaintiff and other delivery drivers working under ISPs have worked out of

FedEx employees under the FLSA.

FedEx-owned and managed terminals throughout the country, where FedEx managers, package

17. Delivery drivers working under ISPs, including Plaintiff, have typically

handlers, and other FedEx employees oversee and manage the package delivery operations.

worked full time and exclusively as FedEx drivers, delivering FedEx's packages to FedEx

22. Plaintiff has interacted with FedEx managers and other FedEx employees while

customers while wearing FedEx uniforms and driving vehicles bearing FedEx's logos and color

performing his work at the FedEx terminal at the beginning and end of his workday.

scheme.

23. The services rendered by Plaintiff and other delivery drivers working under ISPs

18. Plaintiff and other delivery drivers working under ISPs have worked out of

are an integral part of FedEx's business because FedEx is in the business of package delivery,

FedEx-owned and managed terminals throughout the country, where FedEx managers, package

and Plaintiff and these other delivery drivers physically deliver packages to FedEx's customers

handlers, and other FedEx employees oversee and manage the package delivery operations.

on FedEx's behalf.

II. FEDEX UNIFORMLY DICTATES THE TERMS OF EMPLOYMENT BETWEEN

II. FEDEX UNIFORMLY DICTATES THE TERMS OF EMPLOYMENT BETWEEN DRIVERS AND ISPS AND CONTROLS THE CONDITIONS OF EMPLOYMENT

DRIVERS AND ISPS AND CONTROLS THE CONDITIONS OF EMPLOYMENT

24. Plaintiff and other delivery drivers working under ISPs have performed their

19. Plaintiff and other delivery drivers working under ISPs have performed their

delivery work on strict and predictable schedules pursuant to FedEx's delivery requirements.

delivery work on strict and predictable schedules pursuant to FedEx's delivery requirements. The

The drivers' schedules are dictated by the volume of packages that FedEx requires them to

drivers' schedules are dictated by the volume of packages that FedEx requires them to deliver

deliver each day on their routes. Neither these drivers, nor the intermediary ISPs who they

each day on their routes. Neither these drivers, nor the intermediary ISPs who they work under,

work under, control the volume of package pickup and delivery work that the drivers perform.

control the volume of package pickup and delivery work that the drivers perform.

20. FedEx uniformly imposes the same basic job duties on all of its drivers.

25. FedEx uniformly imposes the same basic job duties on all of its drivers. These

These duties include:

duties include:

(a) collecting packages from the FedEx terminal;

a. collecting packages from the FedEx terminal;

(b) delivering packages to the customer pursuant to FedEx's detailed rules;

b. delivering packages to the customer pursuant to FedEx's detailed rules;

(c) collecting and transmitting customer signatures and scanning packages pursuant

c. collecting and transmitting customer signatures and scanning packages pursuant

to FedEx's detailed rules;

to FedEx's detailed rules;

d. picking up packages and delivering them to the FedEx terminal;

e. returning undelivered packages to the FedEx terminal; and

f. preparing daily logs and vehicle inspection reports, which must be submitted to FedEx.

26. FedEx also requires drivers to adhere to a standard set of rules and requirements. These rules and requirements include:

a. commercial delivery signature requirements;

b. residential delivery package release requirements;

c. alcohol delivery requirements;

d. attempted deliveries and pickups, including making three attempts on different service days to deliver any package;

e. indirect signature requirements;

f. direct signature requirements;

g. adult signature requirements;

h. how to "release packages" (where and how to place them);

i. how to complete "indirect" deliveries;

j. how to complete appointment deliveries;

k. when and how to complete evening deliveries;

l. how to complete date certain deliveries;

m. how to complete deliveries in which the recipient is billed;

n. collecting charges when deliveries are paid for at the time of pickup;

o. requirements for package scanning;

p. requirements for scanner data uploading;

q. requirements for noting undelivered packages;

r. timely completing a Driver Release Verification;

s. timely completing a Confirmation of Delivery Form; and

t. requirements for third-party deliveries.

22. Plaintiff has typically worked at least 5 days per week. As such, throughout his employment with FedEx, Plaintiff regularly worked more than 40 hours in a week.

23. Plaintiff has driven a truck weighing less than 10,001 pounds during his employment with FedEx.

24. Plaintiff is thus eligible for overtime pay under the FLSA.

25. However, Plaintiff has not been paid overtime for all hours worked beyond 40 hours per week.

27. Other examples of FedEx's micromanagement of how Plaintiff and other delivery drivers have performed their work include FedEx:

26. Because FedEx is Plaintiff's employer under the FLSA, FedEx is liable to Plaintiff for the unpaid overtime.

34. Indeed, many FedEx drivers were initially hired directly by FedEx to perform its deliveries, until FedEx told drivers that they had to work under an ISP. These drivers responsibilities and the procedures they were required to follow did not change in any material way following the conversion to drivers working under ISPs. Drivers continued to report to FedEx terminals each morning, drove a vehicle with a FedEx logo on it, and followed FedEx procedures to complete their assigned deliveries.

III. FEDEX IMPOSES DETAILED HIRING CRITERIA FOR DRIVERS

35. FedEx orders a professional background check of every delivery driver before the driver is allowed to start working for FedEx. FedEx also requires every driver to pass a Road Test before they begin to work. FedEx may also conduct subsequent background checks of a delivery driver and/or require additional road tests during the driver's employment. FedEx maintains copies of the background checks and a Record of the Road Tests for the delivery drivers working under an ISP.

36. FedEx establishes hiring requirements applicable to all drivers. Drivers must pass controlled substances and alcohol screenings and agree to random screenings by FedEx.

37. Driving records must satisfy eight distinct FedEx-defined criteria regarding safe driving from the past 60 months and nine more from the past 36 months.

38. FedEx also imposes specific experience and training requirements. Drivers are required to have one year of commercial motor vehicle driving experience within the previous three years, or six months of driving experience within the previous three years with the successful completion of a driver training course.

39. FedEx is entitled to obtain proof of an applicant's driving experience and completion of training. FedEx also has the power to conduct investigations and inquiries

27. FedEx has avoided its responsibilities under the FLSA by establishing a system through which FedEx employs Plaintiff and other drivers who are paid by intermediary ISPs. FedEx knew, or should have known, that Plaintiff and other drivers were not paid overtime that they were owed. FedEx has thus acted with reckless disregard for Plaintiff's rights.

28. However, regardless of FedEx's actual or constructive knowledge of Plaintiff's failure to be paid overtime for all eligible hours, FedEx is Plaintiff's "employer," as defined by the FLSA. FedEx is therefore liable for any overtime payments that are due to Plaintiff.

III. FEDEX IMPOSES DETAILED HIRING CRITERIA FOR DRIVERS

29. FedEx orders a professional background check of every delivery driver before the driver is allowed to start working for FedEx. FedEx also requires every driver to pass a Road Test before they begin to work. FedEx may also conduct subsequent background checks of a delivery driver and/or require additional road tests during the driver's employment. FedEx maintains copies of the background checks and a Record of the Road Tests for the delivery drivers working under an ISP.

30. FedEx establishes hiring requirements applicable to all drivers. Drivers must pass controlled substances and alcohol screenings and agree to random screenings by FedEx.

31. Driving records must satisfy eight distinct FedEx-defined criteria regarding safe driving from the past 60 months and nine more from the past 36 months.

32. FedEx is entitled to obtain proof of an applicant's driving experience and completion of training. FedEx also has the power to conduct investigations and inquiries regarding the background of drivers seeking employment to ensure they meet these standards.

IV. FEDEX HAS AUTHORITY TO SUSPEND AND TERMINATE DRIVERS, AMONG OTHER DISCIPLINARY POWERS

regarding the driving experience and background of drivers seeking employment to ensure they meet these standards.

IV. FEDEX HAS AUTHORITY TO SUSPEND AND TERMINATE DRIVERS, AMONG OTHER DISCIPLINARY POWERS

33. FedEx has uniform authority to suspend and terminate drivers through its standardized disqualification process.

40. FedEx has uniform authority to suspend and terminate drivers through its standardized disqualification process.

34. FedEx maintains a policy that includes thirty-one separate offenses that require a driver's work for FedEx to be terminated or suspended. If a driver is found guilty of one of these offenses, then that driver is either no longer permitted to drive for FedEx (through any ISP) or must be suspended for a time period specified by FedEx.

41. FedEx maintains a policy that includes thirty-one separate offenses that require a driver's work for FedEx to be terminated or suspended. If a driver is found guilty of one of these offenses, then that driver is either no longer permitted to drive for FedEx (through ***any*** ISP) or must be suspended for a time period specified by FedEx.

35. FedEx also has the authority to make a preliminary determination that a driver is in violation of or is guilty of any of these thirty-one offenses.

42. FedEx also has the authority to make a preliminary determination that a driver is in violation of or is guilty of any of these thirty-one offenses.

36. FedEx also has the authority to make a preliminary determination that a driver is in violation of or is guilty of any of these thirty-one offenses.

43. FedEx has agreed to indemnify and hold harmless ISPs and drivers for the actions of all drivers while operating a vehicle in connection with their work for FedEx.

37. FedEx's ability to determine whether an accident was "preventable" gives it significant control over the drivers because a driver who is involved in certain "preventable" accidents will be terminated.

44. FedEx requires that it be informed of any traffic citations involving drivers.

45. FedEx must also be informed of any accident involving drivers, regardless of whether there is personal injury or who is at fault.

COUNT I
(Unpaid Overtime Under the FLSA)

46. FedEx requires all drivers to maintain an "Accident Packet" in their vehicle at all times and fill it out any time there is an incident or accident.

38. The FLSA, 29 U.S.C. § 207(a)(1), requires that employees receive overtime premium pay of "not less than one and one-half times" their regular pay rate for hours worked beyond 40 per workweek. FedEx is liable under the FLSA for unpaid overtime owed to Plaintiff. FedEx's violation of the FLSA has been willful and in reckless disregard of Plaintiff's rights.

47. FedEx provides that it will make a good faith determination of the preventability of each accident in which a driver is involved, according to uniform standards.

48. FedEx's ability to determine whether an accident was "preventable" gives it significant control over the drivers because a driver who is involved in certain "preventable" accidents will be terminated.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Alek Schott seeks the following relief:

A. Restitution for all unpaid overtime owed to Plaintiff;

B. Liquidated damages and pre-judgment interest pursuant to the FLSA;

C. Litigation costs, expenses, and attorneys' fees; and

D. Such other and further relief as this Court deems just and proper.

JURY TRIAL DEMAND

Plaintiff demands a jury trial on his claims.

Respectfully submitted,

ALEK SCHOTT

By his attorneys,

/s/ Sarah Schalman-Bergen

Sarah Schalman-Bergen (TX Federal Bar ID No. 2330780)

Shannon Liss-Riordan (MA Bar No. 640716)

LICHTEN & LISS-RIORDAN, P.C.

729 Boylston Street, Suite 2000

Boston, Massachusetts 02116

(617) 994-5800

ssb@llrlaw.com

sliss@llrlaw.com

Respectfully submitted,

ALEK SCHOTT

By his attorneys,

/s/ Sarah Schalman-Bergen

Sarah Schalman-Bergen (TX Federal Bar ID No. 2330780)

Shannon Liss-Riordan (MA Bar No. 640716)

LICHTEN & LISS-RIORDAN, P.C.

729 Boylston Street, Suite 2000

Boston, Massachusetts 02116

(617) 994-5800

ssb@llrlaw.com

sliss@llrlaw.com